

Andhra Pradesh Municipalities (Classification of Records as Confidential or Secret) Rules, 1965

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State of Andhra Pradesh - Act

Andhra Pradesh Municipalities (Classification of Records as Confidential or Secret) Rules, 1965

ANDHRA PRADESH

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Andhra Pradesh Municipalities (Classification of Records as Confidential or Secret) Rules, 1965

Rule

ANDHRA-PRADESH-MUNICIPALITIES-CLASSIFICATION-OF-RECORDS-AS-CONFIDENTIAL-OR-SECRET-RULES-1965 of 1965

Published on 29 April 1965

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Andhra Pradesh Municipalities (Classification of Records as Confidential or Secret) Rules, 1965

In exercise of the powers conferred by Clause (a) of Sub-section (1) of Section 326, read with proviso to Subsection (3) of Section 53 of the Andhra Pradesh Municipalities Act, 1965 (Act

6 of 1965

), the Governor of the A.P. hereby makes the following rules for the classification of municipal records as confidential or secret, the same having been previously published at page 78 of Rules Supplement to Part I of the Andhra Pradesh Gazette dated 29th April, 1965 as required under Clauses (a) and (b) of sub-section (1) of Section 327 of the said Act.

1.

These rules may be called the Andhra Pradesh Municipalities (Classification of Records as Confidential or Secret) Rules, 1965.

2.

In these rules:- (1) 'Act' means the Andhra Pradesh Municipalities Act, 1965 (Act 6 of 1965

);

(2)

'Government' means the Government of Andhra Pradesh;

(3)

'Section' means the section of the Act.

3.

The following records are classified as confidential or secret records of a municipality:-

(1)

(a)

all files relating to establishment i.e., appointments, transfers, promotions and punishments until final orders are issued;

(b)

personal files, i.e., the files containing the annual confidential reports of the municipal officers and other employees;

(2)

files relating to the division of wards upto the time the Government consults the council under Section 10:

(3)

files relating to Election, right from the beginning until the results are published;

(4)

files relating to the cases dealt with under the Prevention of Food Adulteration Act, (Central Act No. 37 of 1954) until the stage of launching prosecution;

(5)

all statements made, returns furnished, accounts or documents produced by any company or person in connection with the assessment of profession tax;

(6)

files relating to the disqualification of candidates under Section 16;

(7)

files relating to the decision of the District Judge under Section 7;

(8)

files relating to cases in which a member or his wife or any member of his family is interested;

(9)

files which have been marked as confidential' by the Commissioner or the Chairperson, Municipal Council, till the cases are disposed of finally; and

(10)

such of the correspondence with the higher authorities and the Government which is marked confidential or secret and all Government orders and orders of higher authorities which are marked confidential or secret:

Provided that the Commissioner or the Chairperson shall, before marking files as Confidential' obtain the approval of the Director of Municipal Administration, who shall communicate his orders within ten days of the receipt of proposal from the municipality;

Provided further that pending receipt of orders from the Director of Municipal Administration, the Commissioner or the Chairperson may treat the records as Confidential'.

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